

23VECV01558 23VECV01558

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-22

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CB%2C07%2F22%2F2026

Source SHA-256: aca56b0e9a1d3ba20da34b06e577c5fff5cebd55be25af85e81cbfd39fddee38

Case Number: 23VECV01558 Hearing Date: July 22, 2026 Dept: B

Tentative Ruling

Shaye v. Eskin Builders Corp, Case
no. 23VECV01558

Hearing date July 22, 2026

D

Eskin's Motion to Compel Further Responses

Plaintiff

Shaye, trustee of the eponymous property living trust, sues defendants Eskin Builders Corp., Saberi Construction Management and Ahmad Saberi for breach of contract, alleging defective construction work. Defendant Eskin moves to compel further responses to form and special interrogatories, set one. Plaintiff opposes.

Per

Code Civ. Proc. §2031.310(a), "the demanding party may move for an order compelling further response to the demand if the demanding party deems that . . . (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive..."

Eskin's

counsel substituted into this matter on 11/10/25, after which counsel identified alleged deficiencies in plaintiff's prior discovery responses. Decl. Mashal, paras. 4-5. The parties met and conferred prior to an IDC on 4/17/26. Id. at paras. 7-11. Plaintiff served supplemental responses to special

interrogatories on 5/11/26 and supplemental responses to form interrogatories on 5/12/26. Id. at para. 14, exh. 1, para. 16, exh. 2. Eskan asserts the further responses were deficient and provided only minimal clarifying information; counsel argues further responses are warranted. Id. at paras. 19-20, exhs. 3-4.

Plaintiff

argues the motion constitutes a shift in the supplemental discovery initially sought. Eskan represented during meet and confer efforts that it only sought clarifying information on plaintiff's initial responses and references to "defendants." See Decl. Libo, exhs. A-B. Eskan's counsel's communications state the parties met and conferred regarding "...Responses to Interrogatories Plaintiff's responses to Form Interrogatories (Set One) and Special Interrogatories (Set One) vaguely reference 'defendants' without identifying any specific defendant..." Id. at exh. C. Meet-and-confer communications identify no other issues.

Eskan

does not address plaintiff's argument in reply, reasserting purported deficiencies. Counsels' communications confirm the discovery was presented to plaintiff and the court as simply a request for clarification of discovery responses regarding the identity of defendants, not broader issues now identified in the separate statement. Sep. Statement, Decl. Libo, exhs. D-E.

The

court continued the motion, held an IDC and ordered meet-and-confers, so the parties could informally identify outstanding issues with the responses and, hopefully, resolve the matter without the need for motion practice. Eskan's failure to accurately identify the issues or to raise belated new issues frustrates the understanding of counsel and the court. Eskan's motion is untimely as to initial responses served in December 2023. Any further discovery must be brought by motion within 45 days. See Code Civ. Proc. §2030.300(c). Further responses can only be ordered as to interrogatories to which plaintiff served further responses in May 2026.

Eskan

is entitled to broad discovery, but there is no basis to award sanctions or deem objections waived; the unanticipated broadening of the discovery sought represents lack of diligence or gamesmanship. GRANTED in part; plaintiff to serve further, code-compliant responses as to discovery identified in this

motion, previously supplemented in May 2026. No objections are deemed waived.

No sanctions.